

DECLARATION OF TRUST
Charitable Remainder Unitrust
(Pursuant to Rev. Proc. 2005-52, 2005-2 C.B. 326)

On this date, __July 1, 2023__, the undersigned Donor:

Name: Patricia D. Whitfield
Address: 1847 Monument Avenue, Richmond, VA 23220
SSN: ***-**-4478

hereby declares and transfers to the following Trustee:

Trustee: National Christian Charitable Foundation, Inc.
EIN: 58-1493949

the following property to establish a Charitable Remainder Unitrust:

Initial Corpus: \$3,750,000 (cash and marketable securities)

TRUST ELECTIONS (check all that apply):

- ☒ Standard CRUT (fixed percentage of annually revalued assets)
- ☐ Net Income CRUT (NICRUT)
- ☐ Net Income with Makeup CRUT (NIMCRUT)
- ☐ Flip CRUT
- ☒ Single life measurement period
- ☐ Joint lives measurement period
- ☐ Term of years: _____ years

DISTRIBUTION TERMS:

The Trustee shall pay to Patricia D. Whitfield during her lifetime a unitrust amount equal to 4.8% of the net fair market value of Trust assets, valued annually. Initial estimated annual payment: \$180,000. Payments shall be made: ☒ Quarterly ☐ Monthly ☐ Semi-annually ☐ Annually

REMAINDER BENEFICIARY:

Organization: Howard University Endowment Fund
Percentage: 100%

TRUSTEE POWERS AND COMPENSATION:

The Trustee accepts appointment and shall exercise all powers necessary to administer this Trust, including investment discretion, power to sell or exchange assets, authority to employ advisors, and power to make tax elections. The Trustee is specifically authorized to retain contributed assets without liability for failure to diversify.

Compensation: Annual fee of 0.80% of net assets (\$30,000 estimated initial year), plus reimbursement of expenses. Fee is deducted from income; if income is insufficient, from principal.

TAX COMPLIANCE:

This Trust shall be administered in compliance with IRC Section 664(d)(2) and applicable Treasury Regulations. The Trustee shall not engage in self-dealing (Section 4941) or make taxable expenditures (Section 4945). This Trust is governed by the laws of the Commonwealth of Virginia.

EXECUTION:

Patricia D. Whitfield, Donor

Date: _____

Authorized Officer, NCCF Inc., Trustee

Date: _____